

The Khaddar (Protection of Name) Act, 1950

(ACT NO. 78 OF 1950)

[*As on the 22nd July, 2025*]

India Code

AMENDING ACT

The Repealing and Amending Act, 1957 (36 of 1957)

———————

LIST OF ABBREVIATIONS USED

A.O.	*for*	Adaptation of Laws Order.
Notifn.	„	Notification.
S.O.	“	Statutory Order.

IndiaCode

THE KHADDAR (PROTECTION OF NAME) ACT, 1950

ARRANAGEMENT OF SECTIONS

SECTIONS

1. Short title and extent.
2. The words “Khaddar” and “Khadi” to be trade description.
3. [*Repealed.*]

IndiaCode

THE KHADDAR (PROTECTION OF NAME) ACT, 1950

ACT NO. 78 OF 1950

[28*th December,* 1950.]

An Act to regulate the use of the words "Khaddar" and "Khadi" when applied as a trade description of woven materials.

BE it enacted by Parliament as follows:—

1. Short title and extent.—(*1*) This Act may be called the Khaddar (Protection of Name) Act, 1950.

(*2*) It extends to the whole of India except the State of Jammu and Kashmir*.

2. The words "Khaddar" and "Khadi" to be trade description.—The words "Khaddar" and "Khadi", whether in Hindi or in any other Indian language or in English, when applied to any woven material, shall be deemed to be a trade description within the meaning of the Indian Merchandise Marks Act, 1889 (4 of 1889), indicating that such material is cloth woven on handlooms in India from cotton, silk or woolen yarn hand-spun in India or from a mixture of any two or all of such yarns.

3. [*Repealed.*] *Rep. by the Repealing and Amending Act*, 1957 (36 *of* 1957), *s.* 2 *and First Sch.*

IndiaCode

*. *Vide* Notification No. S.O. 3912 (E), dated 30th October, 2019, this Act is made applicable to the Union territory of Jammu and Kashmir and the Union territory of Ladakh.

STATEMENT OF OBJECTS AND REASONS

The Khaddar (Name Protection) Act, 1934, was enacted to prevent the improper use of the words "Khaddar" and "Khadi", but its provisions were not effective to prevent the sale of spurious Khadi as genuine Khadi. The Act also did not cover genuine silk and woollen Khadi fabrics.

2. The object of the present Bill is to enlarge the existing definitions of "Khaddar" and "Khadi" to cover silk and woollen fabrics, incidentally extending the Act to the whole of India except Jammu and Kashmir. It is intended to follow up this law by laws passed by the Legislatures of the States providing for the licensing of dealers in Khaddar and Khadi and the prohibition of the sale of such materials, except by licensed dealers or by dealers holding certificates from the All-India Spinners' Association.

NEW DELHI;
Dated the 11*th April*, 1950.

N. V. GADGIL.

IndiaCode